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U.S. District Court - District of Colorado
District of Colorado (Denver)
CIVIL DOCKET FOR CASE #: 1:06-cv-01016-EWN-CBS

Lomax v. Penson
Assigned to: Judge Edward W. Nottingham
Referred to: Magistrate Judge Craig B. Shaffer
Demand: \$60,000
Cause: 42:1983 Prisoner Civil Rights

Date Filed: 05/26/2006
Date Terminated: 11/09/2007
Jury Demand: Both
Nature of Suit: 555 Prisoner - Prison
Condition
Jurisdiction: Federal Question

Plaintiff**Arthur James Lomax**

represented by **Arthur James Lomax**
#134416
Colorado State Penitentiary (CSP)
P.O. Box 777
Canon City, CO 81215-0777
PRO SE

V.

Defendant**Penson***Sgt. and three (3) Unknown Name*

represented by **Thomas G. Bigler**
Denver City and County Attorney's Office
201 West Colfax Avenue
Denver, CO 80202-5332
720-865-8751
Fax: 720-913-3182
Email: dlefilng.litigation@denvergov.org
ATTORNEY TO BE NOTICED

Date Filed	#	Docket Text
05/19/2006	<u>1</u>	MOTION for Leave to Proceed Under 28 U.S.C. 1915 by Plaintiff Arthur James Lomax. (gms,) (Entered: 05/30/2006)
05/26/2006	<u>2</u>	ORDER Directing Clerk to Commence Civil Action and granting <u>1</u> Motion for Leave to Proceed in Forma Pauperis. Plaintiff has 30 days to pay initial partial filing fee of \$22.00, monthly payments due thereafter. Signed by Magistrate Judge Boyd N. Boland on 5/26/06. (gms,) (Entered: 05/30/2006)
05/26/2006	<u>3</u>	Prisoner COMPLAINT against Renson , filed by Arthur James Lomax.(gms,) (Entered: 05/30/2006)
06/08/2006	<u>4</u>	PAYMENT RECEIVED from Arthur James Lomax in the amount of \$ 22.00; Receipt Number 268869; Initial Payment. (pap,) (Entered: 06/12/2006)

06/09/2006	5	MEMORANDUM from Magistrate Judge Boland advising case is to be drawn to a judge and a magistrate judge. (gms,) (Entered: 06/13/2006)
06/21/2006	7	Letter from Clerk to Plaintiff advising of case assignment to Judge Nottingham re 5 Memorandum. (pap,) (Entered: 06/22/2006)
06/22/2006	6	ORDER REFERRING CASE (including dispositive motions) to Magistrate Judge Craig B Shaffer by Judge Nottingham. (ewnsec,) (Entered: 06/22/2006)
06/23/2006	8	ORDER Granting Service by United States Marshal. Signed by Judge Edward W. Nottingham on 6/22/06. (Attachments: # 1 Process Receipt and Return)(pap,) (Entered: 06/23/2006)
06/28/2006	9	Summons Returned Unexecuted by US Marshal Service as to Renson. (pap,) (Entered: 06/28/2006)
07/05/2006	10	LETTER/MOTION to Appoint Counsel by Plaintiff Arthur James Lomax. (pap,) (Entered: 07/05/2006)
07/06/2006	11	MEMORANDUM referring to Magistrate Judge Shaffer : 10 MOTION to Appoint Counsel filed by Arthur James Lomax, by Judge Edward W. Nottingham on 7/5/06. (Text Only Entry - No Document Attached)(pap2,) (Entered: 07/06/2006)
07/21/2006	12	MOTION to Appoint Counsel by Plaintiff Arthur James Lomax. (erv,) (Entered: 07/21/2006)
07/21/2006	13	NOTICE of address change for Sgt Penson by Plaintiff Arthur James Lomax (erv,) (Entered: 07/21/2006)
07/21/2006	14	MEMORANDUM referring to Magistrate Judge Shaffer : 12 MOTION to Appoint Counsel filed by Arthur James Lomax, entered by Judge Edward W. Nottingham on 7/21/06. (Text Only Entry - No Document Attached) (ewnsec,) (Entered: 07/21/2006)
07/25/2006	15	MOTION to Appoint Counsel by Plaintiff Arthur James Lomax. (pap,) (Entered: 07/25/2006)
07/25/2006	16	MEMORANDUM referring to Magistrate Judge Shaffer : 15 MOTION to Appoint Counsel filed by Arthur James Lomax, entered by Judge Edward W. Nottingham on 7/25/06. (Text Only Entry - No Document Attached)(ewnsec,) (Entered: 07/25/2006)
07/31/2006	17	Order and ORDER TO SHOW CAUSE: returnable by Plaintiff Lomax for provide proof of service or show why Sgt. Renson should not be dismissed. Show Cause Response due by 9/25/2006. Denying 10 Lomax' request for appointment of counsel. Denying 12 Lomax' Motion for Appointment of Counsel. Denying 15 Lomax' Motion for Appointment of Counsel. Signed by Magistrate Judge Craig B Shaffer on 7/31/06. (pap,) (Entered: 07/31/2006)
07/31/2006	18	ORDER Denying 10 Plaintiff's Motion to Appoint Counsel, Denying 12 Plaintiff's Motion to Appoint Counsel, Denying 15 Plaintiff's Motion to Appoint Counsel, Pursuant to 17 Order and Order to Show Cause . Signed by Magistrate Judge Craig B Shaffer on 7/31/06. Text Only Order - No Document Attached. (pap,) (Entered: 07/31/2006)
08/03/2006	19	PAYMENT RECEIVED from Arthur James Lomax in the amount of \$ 20.00; Receipt Number 270100; Monthly Payment. (pap,) (Entered: 08/04/2006)
08/03/2006	20	PAYMENT RECEIVED from Arthur James Lomax in the amount of \$ 20.00; Receipt Number 270099; Monthly Payment. (pap,) (Entered: 08/04/2006)
08/10/2006	21	LETTER/Notice of Amended Complaint correcting Defendant's name by Plaintiff Arthur James Lomax. (Attachment #1 Tendered Amended Complaint)(pap,) (Modified on

		8/10/2006 attachment added) (pap,) (Entered: 08/10/2006)
08/10/2006	22	PRISONER'S MOTION and Affidavit for Leave to Proceed Under 28 U.S.C. 1915 by Plaintiff Arthur James Lomax. (pap,) (Entered: 08/10/2006)
08/10/2006	23	LETTER/MOTION to Amend 3 Complaint by Plaintiff Arthur James Lomax. (Attachments: # 1 Tendered Amended Complaint)(pap,) (Entered: 08/10/2006)
08/10/2006	24	Docket Annotation 21 Plaintiff's Letter has been re-filed as 23 MOTION to Amend 3 Complaint. Text only entry - no document attached. (pap,) (Entered: 08/10/2006)
08/11/2006	25	MEMORANDUM referring to Magistrate Judge Shaffer : 22 PRISONER'S MOTION and Affidavit for Leave to Proceed Under 28 U.S.C. 1915 by Plaintiff Arthur James Lomax and 23 LETTER/MOTION to Amend 3 Complaint by Plaintiff (Text Only Entry - No Document Attached) by Judge Edward W. Nottingham on 8/10/06. (dln,) (Entered: 08/11/2006)
08/14/2006	26	ORDER Denying as Moot 22 Plaintiff's Motion for Leave to Proceed in Forma Pauperis, Granting 23 Plaintiff's LETTER/MOTION to Amend 3 Complaint . Signed by Magistrate Judge Craig B Shaffer on 8/14/06. (pap,) (Entered: 08/14/2006)
08/14/2006	27	SECOND ORDER Granting Service by United States Marshal . Signed by Magistrate Judge Craig B Shaffer on 8/14/06. (Attachments: # 1 Process Receipt and Return)(pap,) (Entered: 08/15/2006)
08/30/2006	28	SUMMONS Returned Executed by US Marshals Service. Sgt. Penson served on 8/29/2006, answer due 9/18/2006. (pap,) (Entered: 08/31/2006)
08/31/2006	29	ORDER re: 28 Summons Returned Executed filed by Arthur James Lomax, discharging the 17 Order to Show Cause . Signed by Magistrate Judge Craig B Shaffer on 8/31/06. (pap,) (Entered: 08/31/2006)
09/15/2006	30	ANSWER to Complaint with Jury Demand by Penson.(Bigler, Thomas) (Entered: 09/15/2006)
09/25/2006	31	PAYMENT RECEIVED from Arthur James Lomax in the amount of \$ 20.00; Receipt Number 271185; Monthly Payment. (pap,) (Entered: 09/26/2006)
11/14/2006	32	MOTION to Amend/Correct/Modify <i>Answer to Prisoner Complaint</i> by Defendant Penson. (Bigler, Thomas) (Entered: 11/14/2006)
11/14/2006	33	<i>Amended</i> ANSWER to Complaint with Jury Demand by Penson.(Bigler, Thomas) (Entered: 11/14/2006)
11/14/2006	34	MEMORANDUM regarding 32 MOTION to Amend/Correct/Modify <i>Answer to Prisoner Complaint</i> filed by Penson. Motion referred to Magistrate Judge Craig B Shaffer. Entered by Judge Edward W. Nottingham on 11/14/06. (Text Only Entry - No Document Attached)(ewnsec,) (Entered: 11/14/2006)
11/14/2006	35	Minute ORDER granting Defendant Sergeant Penson's 32 Motion to Amend Answer to Prisoner Complaint. Clerk to accept amended answer tendered 11/14/06, by Magistrate Judge Craig B Shaffer on 11/14/06.(gmssl,) (Entered: 11/15/2006)
11/16/2006	36	MINUTE ORDER that a preliminary Scheduling Conference is for 1/16/2007 09:15 AM in Courtroom A 402 before Magistrate Judge Craig B Shaffer, by Magistrate Judge Craig B Shaffer on 11/16/06. (lam,) (Entered: 11/16/2006)
12/19/2006	37	ORDER Directing Plaintiff to Make Monthly Filing Fee Payment or to Show Cause by the 15th of each month re: 2 Order on Motion for Leave to Proceed in Forma Pauperis. Signed by Magistrate Judge Craig B Shaffer on 12/19/06. (pap,) (Entered: 12/19/2006)

12/28/2006	38	NOTICE of Change of Address by Plaintiff Arthur James Lomax. (pap,) Correct Main Document attached on 1/3/2007) (gms,). (Modified on 1/3/2007 to attach Correct Main Document)(pap2,). (Entered: 01/02/2007)
01/03/2007	39	Docket Annotation re: 38 Notice of Change of Address. Entry has been modified to attach the correct main document. Text only entry - no document attached. (pap2,) (Entered: 01/03/2007)
01/08/2007	40	Mail Returned as Undeliverable re: 37 Order Addressed to Arthur James Lomax. (pap,) (Entered: 01/09/2007)
01/10/2007	41	ORDER Clerk is directed to re-mail 37 Order to Plaintiff at his current address. Signed by Magistrate Judge Craig B Shaffer on 1/10/07. (pap,) (Entered: 01/10/2007)
01/10/2007	42	AMENDED CERTIFICATE of Mailing by Clerk of Court re 37 Order. (pap,) (Entered: 01/10/2007)
01/16/2007	43	Courtroom Minutes/Minute Order for proceedings held before Magistrate Judge Craig B Shaffer. Scheduling Conference held on 1/16/2007: Scheduling Conference set for 2/5/2007 at 9:15 a.m. in Courtroom A 402 before Magistrate Judge Craig B Shaffer. (Court Reporter FTR - Ben Van Dyke) (cbscd) (Entered: 01/16/2007)
01/16/2007	44	ORDER Resetting Preliminary Scheduling Conference after Plaintiff's Failure to Appear, Scheduling Conference is RESET to 2/5/2007 09:15 AM before Magistrate Judge Craig B Shaffer. Signed by Magistrate Judge Craig B Shaffer on 1/16/07. (pap,) (Entered: 01/16/2007)
01/24/2007	45	PAYMENT RECEIVED from Arthur James Lomax in the amount of \$ 10.00; Receipt Number 273916; Monthly Payment. (pap,) (Entered: 01/25/2007)
01/24/2007	46	PAYMENT RECEIVED from Arthur James Lomax in the amount of \$ 10.00; Receipt Number 273915; Monthly Payment. (pap,) (Modified on 1/30/2007 to correct file date) (pap2,). (Entered: 01/25/2007)
01/24/2007	47	PAYMENT RECEIVED from Arthur James Lomax in the amount of \$ 10.00; Receipt Number 273914; Monthly Payment. (pap,) (Entered: 01/30/2007)
02/05/2007	48	Minute Entry for proceedings held before Magistrate Judge Craig B Shaffer : Preliminary Scheduling Conference held on 2/5/2007. No pretrial deadlines set. Court will issue an OSC. (Court Reporter E. E. Miller) (paccd,) (Entered: 02/05/2007)
02/05/2007	49	SECOND ORDER Resetting Preliminary Scheduling Conference after Plaintiff's Failure to Appear. Preliminary Scheduling Conference is RESET to 2/27/2007 08:30 AM before Magistrate Judge Craig B Shaffer. Signed by Magistrate Judge Craig B Shaffer on 2/5/07. (pap,) (Entered: 02/05/2007)
02/05/2007	50	AMENDED CERTIFICATE of Mailing by Clerk of Court re 49 Order, Resetting Hearing. (pap,) (Entered: 02/05/2007)
02/06/2007	51	MOTION to Vacate <i>Preliminary Scheduling Conference</i> , MOTION to Reset <i>Preliminary Scheduling Conference</i> by Defendant Penson. (Attachments: # 1 Proposed Order (PDF Only))(Bigler, Thomas) (Entered: 02/06/2007)
02/06/2007	52	MEMORANDUM regarding 51 MOTION to Vacate <i>Preliminary Scheduling Conference</i> MOTION to Reset <i>Preliminary Scheduling Conference</i> filed by Penson. Motion referred to Magistrate Judge Craig B Shaffer. Entered by Judge Edward W. Nottingham on 2/6/07. (Text Only Entry - No Document Attached)(ewnsec,) (Entered: 02/06/2007)
02/07/2007	53	THIRD ORDER Granting 51 Defendant's Motion to Vacate and 51 Motion to Reset Preliminary Scheduling Conference. Preliminary Scheduling Conference set for 3/6/2007

		08:30 AM before Magistrate Judge Craig B Shaffer. Signed by Magistrate Judge Craig B Shaffer on 2/6/07.(pap,) (Entered: 02/07/2007)
02/07/2007	54	AMENDED CERTIFICATE of Mailing by Clerk of Court re 53 Third Order Resetting Preliminary Scheduling Conference. (pap,) (Entered: 02/07/2007)
03/06/2007	55	Minute Entry/Minute Order for proceedings held before Judge Craig B Shaffer : Scheduling Conference held on 3/6/2007. (Court Reporter FTR - Bernique Abiakam.) (pap,) (Entered: 03/06/2007)
03/06/2007	56	Minute Entry for proceedings held before Judge Craig B Shaffer : Settlement Conference held on 3/6/2007. (pap,) (Entered: 03/12/2007)
03/14/2007	57	LETTER informing the court plaintiff wishes to continue his civil case by Plaintiff Arthur James Lomax. (pap,) (Entered: 03/14/2007)
03/21/2007	58	FOURTH ORDER re: 57 Letter filed by Arthur James Lomax Preliminary Scheduling Conference set for 4/19/2007 10:45 AM before Magistrate Judge Craig B Shaffer.Signed by Magistrate Judge Craig B Shaffer on 3/21/07. (pap,) (Entered: 03/21/2007)
03/21/2007	59	AMENDED CERTIFICATE of Mailing by Clerk of Court re 58 Fourth Order Resetting Preliminary Scheduling Conference. (pap,) (Entered: 03/21/2007)
04/04/2007	60	ORDER Directing Plaintiff to make monthly payment by the 15th of each month or to show cause why he has no assets (certified copy of his inmate trust fund account statement for the month). Signed by Magistrate Judge Craig B Shaffer on 4/4/07. (pap,) (Entered: 04/04/2007)
04/16/2007	61	PAYMENT RECEIVED from Arthur James Lomax in the amount of \$ 50.00; Receipt Number 000711; Monthly Payment. (pap,) (Entered: 04/16/2007)
04/17/2007	65	Trust Fund Account STATEMENT re 2 Order on Motion for Leave to Proceed in Forma Pauperis, by Plaintiff Arthur James Lomax. (gms,) (Entered: 05/01/2007)
04/19/2007	62	Courtroom Minutes/Minute Order for proceedings held before Magistrate Judge Craig B Shaffer. Scheduling Conference held on 4/19/2007: Discovery due by 7/31/2007 and Dispositive Motions due by 8/31/2007. (Court Reporter FTR - Ben Van Dyke) (cbscd) (Entered: 04/19/2007)
04/30/2007	63	MINUTE ORDER re: 51 MOTION to Vacate and Reset, Dispositive motion deadline is extended 30 days after Mr. Finley serves his responses to CHM's First Set of Interrogatories, Requests for Production and Requests for Admission. Entered by Magistrate Judge Craig B Shaffer on 4/30/07. (pap,) (Entered: 04/30/2007)
04/30/2007	64	Docket Annotation re: 63 Minute Order (entered 4/20/07), the pdf attached has the wrong case caption - and was therefore entered into the wrong case. Text only entry - no document attached. (pap,) (Entered: 04/30/2007)
05/16/2007	66	Inmate trust fund account STATEMENT re 2 Order on Motion for Leave to Proceed in Forma Pauperis, by Plaintiff Arthur James Lomax. (pap,) (Entered: 05/16/2007)
06/12/2007	67	Inmate trust fund account STATEMENT re 2 Order on Motion for Leave to Proceed in Forma Pauperis, by Plaintiff Arthur James Lomax. (pap,) (Entered: 06/12/2007)
07/11/2007	68	PAYMENT RECEIVED from Arthur James Lomax in the amount of \$ 83.00; Receipt Number 002682; Monthly Payment. (pap,) (Entered: 07/11/2007)
07/12/2007	69	Inmate trust fund account STATEMENT re 2 Order on Motion for Leave to Proceed in Forma Pauperis, by Plaintiff Arthur James Lomax. (pap,) (Entered: 07/12/2007)

08/14/2007	70	Inmate trust fund account STATEMENT re 2 Order on Motion for Leave to Proceed in Forma Pauperis, by Plaintiff Arthur James Lomax. (pap,) (Entered: 08/14/2007)
08/17/2007	71	LETTER/MOTION For Extension of Time by Plaintiff Arthur James Lomax. (pap,) (Entered: 08/21/2007)
08/21/2007	72	MEMORANDUM regarding 71 MOTION For Extension of Time to filed by Arthur James Lomax. Motion referred to Magistrate Judge Craig B Shaffer by Judge Edward W. Nottingham on 8/21/07. (Text Only Entry - No Document Attached)(pap2,) (Entered: 08/21/2007)
08/22/2007	73	MINUTE ORDER Setting Hearing on Motion 71 MOTION For Extension of Time to : Motion Hearing set for 8/30/2007 10:00 AM in Courtroom A 402 before Magistrate Judge Craig B Shaffer. Entered by Magistrate Judge Craig B Shaffer on 8/22/07. (pap,) (Entered: 08/22/2007)
08/30/2007	74	Minute Entry/ Minute Order for proceedings held before Judge Craig B Shaffer : Motion Hearing held on 8/30/2007; Denying 71 Motion for Extension of Time. (Court Reporter FTR - Ben Van Dyke.) (pap,) (Entered: 08/30/2007)
09/04/2007	75	MINUTE ORDER: A Final Pretrial Conference is set for 10/5/2007 from 3:45 PM to 4:15 PM in Courtroom A201 before Chief Judge Edward W. Nottingham. The Department of Corrections shall arrange for Plaintiff Arthur Lomax to attend the conference by telephone. Entered by Chief Judge Edward W. Nottingham on 9/4/07. (Text Only Entry - No Document Attached)(ewnsec,) (Entered: 09/04/2007)
09/04/2007	76	PAYMENT RECEIVED from Arthur James Lomax in the amount of \$ 10.00; Receipt Number COX003862; Monthly Payment. (pap,) (Entered: 09/04/2007)
09/13/2007	77	Prisoner's Trust Fund Account STATEMENT re 2 Order on Motion for Leave to Proceed in Forma Pauperis, by Plaintiff Arthur James Lomax. (gms,) (Entered: 09/13/2007)
09/25/2007	78	Proposed Pretrial Order by Plaintiff Arthur James Lomax. (pap,) (Entered: 09/25/2007)
09/28/2007	79	Proposed Pretrial Order <i>Final</i> by Defendant Penson. (Attachments: # 1 Exhibit Exhibit List of Defendant Sergeant Craig Penson)(Bigler, Thomas) (Entered: 09/28/2007)
10/09/2007	80	MINUTE ORDER: The Final Pretrial Conference is RESET to 10/25/2007 at 2:15 PM in Courtroom A201 before Chief Judge Edward W. Nottingham. The Department of Corrections shall arrange for Plaintiff Arthur Lomax to attend the conference by telephone. Entered by Chief Judge Edward W. Nottingham on 10/25/07. (Text Only Entry - No Document Attached)(ewnsec,) (Entered: 10/09/2007)
10/15/2007	81	Prisoner's Trust Fund Account STATEMENT re 2 Order on Motion for Leave to Proceed in Forma Pauperis, by Plaintiff Arthur James Lomax. (gms,) (Entered: 10/15/2007)
10/22/2007	82	ORDER Directing Plaintiff to pay \$33.71 in to the court registry by 11/1/07 or show cause why he cannot; directing Plaintiff to make payment by the 15th of each month or to show cause why he can not re: 2 Order on Motion for Leave to Proceed in Forma Pauperis. Signed by Magistrate Judge Craig B Shaffer on 10/22/07. (pap,) (Entered: 10/23/2007)
10/25/2007	83	Minute Entry for Final Pretrial Conference held on 10/25/2007 before Chief Judge Edward W. Nottingham. (Court Reporter Therese Lindblom) (ewncd) (Entered: 10/25/2007)
10/26/2007	84	Final PRETRIAL ORDER Trial Preparation Conference set for 11/2/2007 at 02:15 PM before Chief Judge Edward W. Nottingham. 2-day Jury Trial set for 11/5/2007 09:00 AM in Courtroom A 201 before Chief Judge Edward W. Nottingham. Discovery complete, no

		motions pending.Signed by Chief Judge Edward W. Nottingham on 10/26/07. (sss,) (Entered: 10/26/2007)
10/26/2007	85	MINUTE ORDER: The plaintiff shall attend the Trial Preparation Conference set for November 2, 2007, and Trial set for November 5, 2007, in person. The Clerk of Court shall issue a writ of habeas corpus ad prosequendum. Entered by Chief Judge Edward W. Nottingham on 10/26/07. (Text Only Entry - No Document Attached)(ewnsec,) (Entered: 10/26/2007)
10/26/2007	86	MOTION to Reset <i>Trial Preparation Conference set for November 2, 2007</i> by Defendant Penson. (Attachments: # 1 Proposed Order (PDF Only))(Bigler, Thomas) (Entered: 10/26/2007)
10/26/2007	87	PAYMENT RECEIVED from Arthur James Lomax in the amount of \$ 30.00; Receipt Number 5184; Monthly Payment. (sss,) (Entered: 10/26/2007)
10/26/2007	88	Writ of Habeas Corpus ad Prosequendum Issued as to Arthur James Lomax for 11/2/07 and day to day thereafter. (pap,) (Entered: 10/26/2007)
10/26/2007	89	(Revised) Writ of Habeas Corpus ad Prosequendum (to correct document title) Issued as to Arthur James Lomax for 11/2/07 and day to day thereafter. (pap,) (Entered: 10/26/2007)
10/26/2007	90	MINUTE ORDER denying 86 Motion to Reset Trial Preparation Conference. Entered by Chief Judge Edward W. Nottingham on 10/26/07. (Text Only Entry - No Document Attached)(ewnsec,) (Entered: 10/26/2007)
10/26/2007	91	MOTION in Limine <i>re: Newspaper Article</i> by Defendant Penson. (Attachments: # 1 Proposed Order (PDF Only))(Bigler, Thomas) (Entered: 10/26/2007)
11/02/2007	92	Proposed Jury Instructions by Defendant Penson. (Attachments: # 1 Jury Verdict Form) (Bigler, Thomas) (Entered: 11/02/2007)
11/02/2007	93	Proposed Voir Dire by Defendant Penson. (Bigler, Thomas) (Entered: 11/02/2007)
11/02/2007	94	Exhibit List by Defendant Penson. (Bigler, Thomas) (Entered: 11/02/2007)
11/02/2007	95	Witness List by Defendant Penson. (Bigler, Thomas) (Entered: 11/02/2007)
11/02/2007	96	Minute Entry for Trial Preparation Conference held on 11/2/2007 before Chief Judge Edward W. Nottingham. ORDERED: 91 Motion in Limine is GRANTED; pltf's oral request for counsel is DENIED. (Court Reporter Therese Lindblom) (ewncd) (Entered: 11/02/2007)
11/05/2007	97	Minute Entry for Jury Trial - Day One held on 11/5/2007 before Chief Judge Edward W. Nottingham. Evidence entered. ORDERED: Deft's oral motion to dismiss claims against Deft Penson is DENIED. (Court Reporter Therese Lindblom) (ewncd) (Entered: 11/05/2007)
11/05/2007	98	Substantive Jury Instructions. (sss,) (Entered: 11/05/2007)
11/06/2007	99	Minute Entry for proceedings held before Chief Judge Edward W. Nottingham: Jury Trial - Day Two, completed on 11/6/2007. Verdict enters in favor of defendant against plaintiff, dismissing case with prejudice. Clerk shall enter judgment in accordance with jury's verdict. (Court Reporter Therese Lindblom.) (Attachments: # 1 Defendant's Exhibit List, # 2 Plaintiff Exhibit List, # 3 Redacted Juror Note) (sss,) (Entered: 11/06/2007)
11/06/2007	100	Redacted JURY VERDICT in favor of defendant. (sss,) (Entered: 11/06/2007)
11/06/2007	101	SEALED DOCUMENT: unredacted juror note. (sss,) (Entered: 11/06/2007)

11/06/2007	102	SEALED DOCUMENT: unredacted verdict. (sss,) (Entered: 11/06/2007)
11/06/2007	103	Stipulation and ORDER regarding Custody of Exhibits and Depositions. Signed by Chief Judge Edward W. Nottingham on 11/6/07. (sss,) (Entered: 11/06/2007)
11/06/2007	104	RECEIPT for Exhibits and/or Depositions signed by Plaintiff Arthur James Lomax, Defendant Penson, and Courtroom Deputy. (sss,) (Entered: 11/06/2007)
11/06/2007	105	Court's General Jury Instructions. Signed by Chief Judge Edward W. Nottingham on 11/6/07.(sss,) (Entered: 11/07/2007)
11/08/2007	106	Writ of Habeas Corpus ad Prosequendum as to Arthur James Lomax Returned Executed on 11/6/07. (sss,) (Entered: 11/08/2007)
11/09/2007	107	JUDGMENT by Clerk entered in favor of Defendant Sgt. Penson, and against Plaintiff Arthur James Lomax, dismissing the case with prejudice. Approved by Chief Judge Edward W. Nottingham on 11/9/07. (lam,) (Entered: 11/09/2007)

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Exempt flag:	Exempt	Exempt reason:	Exempt Court Order